

for hearing on September 23, 2024. That date is confirmed. Today's hearing has been **VACATED. No appearance is necessary on today's calendar.**

ESTATE OF RUSSELL BUHAY

Case Number: 22PB-0031616

This matter is on calendar for hearing on the First and Final Account and Report of Executor and Petition for Final Distribution and Allowance of Attorney's Fees. The matter has been properly noticed, with proof of service on file. The Petition fails to indicate whether notice was provided to the Franchise Tax Board as required by Probate Code § 9202(c). It also incorrectly calculates counsel's compensation. Receipts are incorrect, as they improperly include a loan of \$3000.15 to the estate. This is not an income receipt, as it does not increase the value of the estate. Receipts are \$18,933.31. The calculation of statutory compensation fails to take into account the losses totaling \$27,958.25. The statutory compensation is \$8,693.73. The Court also notes that there is a disbursement of \$900 for attorney's fees that is not explained. This matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for further proceedings on the First and Final Account. Petitioner shall file an Amended First and Final Account that addresses the above issues. Petitioner shall also file and timely serve a new notice of hearing for the continued hearing date. Finally, Petitioner shall submit a new proposed order. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES CALLAHAN

Case Number: 24PB-0032410

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Partial Inventory and Appraisal filed on August 12, 2024, is accepted by the Court. A Status Report has been filed requesting additional time to file the Final Inventory and Appraisal. The matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for confirmation of the filing of the Final Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of May 12, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF FRANKLIN CIBULA

Case Number: CVPB08-0025945

This matter is on calendar for further proceedings on Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**